

BlueLine Freight Systems - Master Transportation Services Agreement

Agreement ID BLF-MSA-2025-117 | Effective January 1, 2025 through December 31, 2026

1. Scope and Order of Precedence

This agreement governs less-than-truckload transportation services provided by BlueLine Freight Systems to Northstar Retail Equipment LLC. A shipment-specific written addendum or guaranteed-service confirmation may override conflicting terms. Requested delivery dates, routing instructions, or customer promotion dates do not by themselves create a guaranteed delivery commitment.

2. Cargo Loss and Damage Liability

For proven loss of or physical damage to cargo while in BlueLine custody, BlueLine liability is limited to the lesser of (a) the actual invoice value of the goods lost or damaged, or (b) \$50.00 per pound multiplied by the weight of the goods lost or damaged, unless a higher released value is declared in writing and the applicable charge is paid before pickup.

The claimant must provide reasonable proof of quantity tendered, quantity delivered, product value, and the nature and extent of loss. BlueLine may request photographs, inspection records, packaging information, salvage information, and other evidence reasonably necessary to evaluate the claim.

3. Packaging and Mitigation

The shipper is responsible for packaging reasonably suitable for normal LTL handling. BlueLine is not liable to the extent loss is caused by insufficient packaging. The claimant must mitigate loss where commercially reasonable and credit the value of salvage or usable goods. Reasonable third-party inspection costs may be considered when requested or reasonably necessary to establish the loss; internal administrative labor is not separately reimbursable unless agreed in writing.

4. Delay, Service Failures, and Consequential Damages

Standard LTL transit dates are estimates and are not guaranteed. BlueLine is not liable for special, incidental, consequential, punitive, or loss-of-market damages, including lost profits, customer penalties, markdowns, loss of promotion value, or business interruption arising from delay.

If the shipper purchases a written Guaranteed Appointment service and BlueLine fails to meet the confirmed appointment for reasons within BlueLine control, the shipper may request a service refund. Maximum liability for that delay is the freight charge for the affected shipment. Cargo loss or physical damage remains governed by Section 2.

5. Claim Notice and Documentation

Cargo loss or damage claims must be filed in writing within nine (9) months of delivery or the scheduled delivery date for non-delivery. Claims based solely on delay or guaranteed-service failure must be submitted within thirty (30) days after delivery. Claims must identify the shipment, amount claimed, and factual basis, and must include reasonably available supporting documentation.

6. Settlement and Commercial Resolution

Nothing in this agreement prevents the parties from negotiating a commercial compromise. A settlement amount does not amend the agreement or establish a precedent unless expressly stated in a signed writing.

Authorized for Northstar Retail Equipment LLC and BlueLine Freight Systems. Synthetic agreement for interview use only.